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Case Name: *Ricardo Enrique-Daniel, et al. v. Estate of Patricia Basquez, et al.*

Case No.: 23CV422452

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jauna Garcia Casas (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.280 and 2033.010 *et al.* that the truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One (“RFAs”) propounded by Plaintiff on Defendant Estate of Patricia Basquez (“Defendant”) on April 24, 2025, be deemed admitted by Defendant. Notice of Motion (the “Motion”) at 2:6-10 (filed Oct. 7, 2025). The Motion is made on the ground that Defendant never provided a verified response to the RFAs. *Id.* at 2:11-14. Plaintiff further seeks sanctions in the amount of \$1,985.00. *Id.* at 2:22-24.

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of the Motion is straightforward.

On April 24, 2025, Plaintiff served Defendant with the RFAs. Declaration of attorney Roberto Dominguez Quiroga In Support of Motion (the “Dominguez Decl.”) at ¶ 8 & Ex. 1 thereto.

Code of Civil Procedure Section 2033.240(a) requires that “[t]he party to whom the requests for admission are directed *shall* sign the response under oath unless the response contains only objections.” C.C.P. § 2033.240(a) (emphasis added). Defendant “Estate of Patricia Basquez’s Responses To Requests For Admission, Set One,”⁷ which Defendant’s lawyer Claudia Lozano signed and served on Plaintiff on June 23, 2025, contain both answers and objections. So under Section 2033.240(a), these Responses must be verified by the party—Defendant Estate of Patricia Basquez. *See Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)*(1995) 40 Cal. App. 4th 651, 657 (where answers and objections intermixed, the portion containing fact-specific responses must be verified).

But, despite repeated requests from Plaintiff’s counsel, Defendant never provided a verification for these Responses. Dominguez Decl. at ¶12. Moreover, a review of the meet-and-confer emails between counsel on this point shows that Defendant’s lawyer Claudia Lozano and her paralegal Bertha Arroyo knew that a verification for these Responses was required, repeatedly promised to provide that required verification, but

⁷ Hereinafter, the “Responses.”

never provided one. *See* Dominguez Decl., Ex. 2, July 17, 2025 email from Bertha Arroyo to Plaintiff's counsel Roberto Dominguez Quiroga, cc'ing defense lawyer Claudia Lozano, providing amended responses to discovery requests and promising: "Please note, verifications will follow"; August 20, 2025 email from Claudia Lozano to Roberto Dominguez Quiroga, replying to Dominguez's August 20, 2025 question on when verifications are coming with the promise that they would be provided within a few days: "Give us till Friday, August 22nd, to provide."

This failure by Defendant to provide a verification to these Responses is a serious and sanctionable discovery violation because where, as here, a verification is required: "an unverified response is ineffective; *it is the equivalent of no response at all.*" California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (2002 The Rutter Group) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636).

And because Defendant thereby failed to respond to the RFAs at all, Plaintiff now properly moves under Code of Civil Procedure Section 2033.280 for an Order deeming admitted by Defendant the truth of each matter specified in the RFAs. C.C.P. § 2033.280(b); Pl. Memorandum of Points & Authorities In Support of Motion at 5:22-7:26 (invoking C.C.P. § 2033.280(b)).

In Opposition, attorney Claudia Lozano filed a Declaration with incredible excuses that the Court respectfully rejects. Its excuses are internally inconsistent and rejected by the Court. For several years after this 2023 case was filed, including on all pleadings and on the very Responses at issue in this Motion, attorney Lozano has identified herself as the "Attorney for Defendant, Estate of Patricia Basquez." *See, e.g.,* Dominguez Decl. Ex. 3. (Defendant's Responses to the RFAs, signed by "Claudia Lozano, Esq., Attorney for Defendant Estate of Patricia Basquez."). But now in her Declaration, attorney Lozano suddenly claims after years representing the Estate in this action that she has been told by some other lawyer that "there is no Estate of Patricia Basquez and no one that is legally authorized to sign verifications or any documentation on her behalf." Declaration of Claudia Lozano, Esq. at ¶ 5. But that cannot be true because attorney Lozano has been signing and filing documents in this Court on behalf of the Estate of Patricia Basquez for many years. The Court does not believe and does not find that attorney Lozano has been doing so illegally and without authority for years—or else the Court would have no choice but to report attorney Lozano to the State Bar of California for serious disciplinary violations of having without any agency authority represented in open court a non-existent client for years. That's not what happened, that's not the truth.

What actually happened here is that the brother of decedent Patricia Basquez, who attorney Lozano long believed "was authorized to verify said discovery responses" refused to sign the verification—as if he had that choice—because he "wanted a guarantee of no personal exposure." Declaration of Claudia Lozano, Esq. at ¶ 4.

So the Court rejects as incredible and unbelievable in the extreme the newfangled excuse that the Estate of Patricia Basquez does not exist and there is no one authorized to sign on its behalf *as completely inconsistent and in conflict with the words and actions of attorney Lozano in this case for years—which are imputed to the Estate of Patricia*

Basquez as attorney Lozano has acted as the Estate's authorized agent in this case for years.

The Court finds that the Motion is well supported by the law and by the facts as set forth in the Supporting Dominguez Declaration. And the Court rejects the Opposing Lozano Declaration. Accordingly, the Motion is **GRANTED** as follows. Specifically, it is **ORDERED** that the truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One, served on Defendant Estate of Patricia Basquez on April 24, 2025, is deemed admitted by Defendant Estate of Patricia Basquez.

Regarding Plaintiff's request for a monetary sanction now, the Court finds that Defendant while advised by its attorney Lozano committed a "misuse of the discovery process" under Section 2023.010(d): by failing to provide the required verification, Defendant failed to respond at all to the RFAs. And because Defendant and Defendant's attorney Lozano violated Section 2023.010(d), the Court has authority and discretion to impose a reasonable monetary sanction against them under Section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). But how much is reasonable for this particular discovery Motion is within the Court's broad discretion.

Here, for attorneys' fees Plaintiff requests \$1,925.00, which equals 3.5 hours at a billable rate of \$550.00 per hour. Dominguez Decl. at ¶¶16-17. For costs, Plaintiff requests the \$60.00 filing fee for this Motion. *Id.* at ¶15. In light of the relevant market, the Court finds that the billable rate sought of \$550.00 is reasonable. But this Motion did *not* reasonably take 3.5 hours. All Plaintiff had to do to win it is point out that (a) Plaintiff served the RFAs, on Defendant (it did); (b) Defendant is required by California law to provide verified responses (it is); and (c) Defendant never provided a verification (it never did). The Court finds that reasonably should have taken 1.0 hour total to draft and argue. As Defendant's opposing Declaration is nonsense and not credible at all, the Court is not going to award Plaintiff any time for reviewing or replying to that. But the Court will award Plaintiff as a reasonable cost for bringing this motion the \$60.00 filing fee.

Hence, for a monetary sanction, the Court awards Plaintiff a **total of \$610.00**, which equals reasonable attorneys' fees of \$550.00 (= 1.0 hours x \$550.00 per hour) plus reasonable costs of \$60.00 for *this* Motion. The Court further Orders that Defendant and Defendant's attorney Claudia Lozano are jointly and severally responsible for paying Plaintiff this monetary sanction of \$610.00 within 30 days from today.⁸

⁸ This monetary sanction of \$610.00 that the Court now awards for this Motion to Compel Plaintiff to Provide a Verified Response to the RFAs is *separate and distinct from* any other monetary sanctions that the Court awards against Defendant and attorney Lozano in other Orders for other discovery motions. Simply put, Defendant and attorney Lozano must pay them all.

Conclusion and Order

Plaintiff's Motion is **GRANTED**. Specifically the Court **ORDERS** that:

1. The truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One, served on Defendant Estate of Patricia Basquez on April 24, 2025, is deemed admitted by Defendant Estate of Patricia Basquez; and
2. Within 30 days from today, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano will pay Plaintiff Juana Garcia Casas a monetary sanction of \$610.00 total for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Moreover, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano are put on **NOTICE** that failure to comply with this Order within 30 days from today may result in further escalating monetary sanctions against them, plus nonmonetary sanctions including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Beverly Ann Land v. Ford Motor Company, et al.*

Case No.: 25CV461206

See Order above. (As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR).